

U564819

534-06-1062

DECLARATION OF COVENANTS, CONDITIONS AND RESTRICTIONS

(Bolsover Court)

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\$61.00

THE STATE OF TEXAS §
COUNTY OF HARRIS §

KNOW ALL MEN BY THESE PRESENTS:

THIS DECLARATION, made on the date hereinafter set forth by Bolsover Court Partnership, a Texas general partnership, hereinafter referred to as "Declarant",

WITNESSETH:

WHEREAS, Declarant is the owner of certain property in the County of Harris, State of Texas, known as the Bolsover Court Townhouse project which is located upon the following property (the "Property"):

All of Bolsover Court, a subdivision in Harris County, Texas, according to the map or plat thereof, which map or plat will be hereafter recorded in the Plat Records of Harris County, Texas, and will create a subdivision of the following described property:

Lot Thirteen (13), Fourteen (14) and Fifteen (15) of SOUTHAMPTON COURT, an addition in Harris County, Texas, according to the map or plat thereof recorded in Volume 855, Page 195 of the Deed Records of Harris County, Texas; and

WHEREAS, Declarant desires to impose certain easements, restrictions, covenants and conditions upon said Property.

NOW THEREFORE, Declarant hereby declares that the Property shall be held, sold and conveyed subject to the following easements, restrictions, covenants, and conditions, all of which are for the purpose of enhancing and protecting the value, desirability, and attractiveness of the Property. These easements, covenants, restrictions, and conditions shall run with the Property and be binding on all parties having or acquiring any right, title or interest in the Property or any part thereof, their heirs, successors and assigns, and shall inure to the benefit of each owner thereof.

ARTICLE I.

DEFINITIONS

Section 1. "Association" shall mean and refer to Bolsover Court Homeowners Association, Inc., its successors and assigns.

Section 2. "Common Area" shall mean that portion of the Property designated as Reserve "A" on the Plat and intended to be used as compensating open space.

Section 3. "Declarant" shall mean and refer to Bolsover Court Partnership, its successors and assigns if such successors and assigns should acquire more than one Lot from the Declarant.

Section 4. "Lienholder" shall mean the holder of a first lien mortgage on any Townhouse in the development.

Section 5. "Lot" shall mean any of the five parcels of land identified as Lots 1, 2, 3, 4 and 5 on the Plat, on each of which there will be built a townhouse.

Section 6. "Member" shall mean and refer to every person or entity who holds membership in the Association.

Section 7. "Owner" shall mean and refer to the record owner, whether one or more persons or entities, of a fee simple title to any Lot which is a part of the Property, including contract sellers, but excluding those having such interest merely as security for the performance of an obligation. However, the term "Owner" shall include any mortgage or lienholder who acquires fee simple title to any Lot which is a part of the Property, through judicial or non-judicial foreclosure.

Section 8. "Plat" shall mean and refer to the subdivision plat of Bolsover Court hereinafter filed of record in the map or plat records of Harris County, Texas, which will subdivide the Property into five (5) Lots.

Section 9. "Property" shall mean and refer to that certain real property hereinbefore described.

Section 10. "Townhouse" shall mean a single family residence unit constructed on a Lot, together with its appurtenant garden, garage and driveway. The term "Unit" shall have the same meaning herein as the term "Townhouse".

ARTICLE II.

PROPERTY RIGHTS

Section 1. Owner's Easements of Enjoyment. Every Owner shall have a right and easement of enjoyment in and to the Common Area and such easement shall be appurtenant to and shall pass with the title to every Lot, subject to the right of the Association to establish rules and regulations relating to its use.

Section 2. Title to the Common Area. The Declarant hereby covenants for itself, its successors and assigns, that it will convey fee simple title to the Common Area to the Association, free and clear of all encumbrances and liens. The Common Area shall remain undivided and shall at all times be owned by the Association or its successors, it being agreed that this restriction is necessary in order to preserve the rights of the Owners with respect to the operation and management of the Common Area.

Section 3. Access Easement. A non-exclusive access easement five (5) feet in width is hereby dedicated along and across the northernmost portion of Lots 2, 3, 4 and

5 of the Property for the purpose of affording the Owners access from their respective Lot to the Common Area. Such area covered by such easement may be utilized and maintained by the Owner thereof in any manner deemed appropriate by such Owner which does not unreasonably interfere with such access easement and is not otherwise inconsistent with the provisions of this Declaration.

ARTICLE III.

MEMBERSHIP AND VOTING RIGHTS

Section 1. Every person or entity who is a record owner of a fee or undivided fee interest in any Lot which is subject, by covenants of record, to assessment by the Association, including contract sellers, shall be a member of the Association. The foregoing is not intended to include persons or entities who hold an interest merely as security of the performance of an obligation. No Owner shall have more than one membership. Membership shall be appurtenant to and may not be separated from any ownership of any Lot which is subject to assessment by the Association. Ownership of such Lot shall be the sole qualification for membership. Any mortgagee or lienholder who acquires title to any Lot which is a part of the Property, through judicial or nonjudicial foreclosures, shall be a member of the Association.

Section 2. The Association shall have two classes of voting membership:

Class A. Class A Members shall be all Owners, with the exception of the Declarant, and shall be entitled to one vote for each Lot owned. When more than one person holds such interest in any Lot, all such persons shall be Members. The vote for such Lot shall

be exercised as they among themselves determine, but in no event shall more than one vote be cast with respect to any Lot.

Class B. The Class B Member shall be the Declarant, and its successors, and shall be entitled to five (5) votes for each Lot owned, provided that the Class B membership shall cease and be converted to Class A membership on the happening of either of the following events, whichever occurs earlier:

- (a) when the total votes outstanding in the Class A membership equal the total votes outstanding in the Class B membership, or
- (b) three (3) years from the filing date hereof in the Real Property Records of Harris County, Texas.

ARTICLE IV.

COVENANT FOR MAINTENANCE ASSESSMENTS

Section 1. Creation of the Lien and Personal Obligation of Assessment. The Declarant, for each Lot Owned within the Property, hereby covenants, and each Owner of any Lot by acceptance of a deed therefor, whether or not it shall be expressed in any such deed or other conveyance, is deemed to covenant and agree to pay to the Association: (1) annual assessments or charges; and (2) special assessments for capital improvements, such assessments to be fixed, established, and collected as hereinafter provided. The annual and special assessments, together with such interest thereon and costs of collection thereof, as hereinafter provided, shall be a charge on the land and shall be secured by a continuing lien upon the property against which each such assessment is made. Each such assessment, together with such interest, costs, and reasonable

attorney's fees shall be the personal obligation of the person who was the Owner of such property at the time when the assessment fell due. The personal obligation for delinquent assessments shall not pass to his successors in title unless expressly assumed by them.

Section 2. Purpose of Assessments. The assessments levied by the Association shall be used exclusively for the purpose of promoting the recreation, health, safety, and welfare of the residents in the Property and in particular for the improvement and maintenance of the Property and the Townhouses situated thereon ~~and the Common Area~~ and services and facilities relating to the use and enjoyment thereof. Assessments shall include, but are not limited to, funds to cover actual Association costs for all taxes, insurance, repair, replacement and maintenance ~~of the Common Area~~, and of the maintenance of the exteriors of the Townhouses as herein authorized or as may from time to time be authorized by the Board of Directors; including, but not limited to, mowing grass, caring for the grounds, sprinkler systems, landscaping, roofs and exterior walls and fences of the Townhouses, garbage pickup areas, and other charges required by this Declaration of Covenants, Conditions, and Restrictions or that the Board of Directors of the Association shall determine to be necessary to meet the primary purpose of the Association, including the establishment and maintenance of a reserve for repair, maintenance, taxes and other charges as specified herein.

Section 3. Basis and Maximum of Annual Assessments. Until January 1 of the year immediately following the conveyance of the first Lot to an Owner, the maximum annual assessment shall be \$2,400 per Lot.

(a) From and after January 1 of the year immediately following the conveyance of the first Lot to an Owner, the maximum annual assessment may be increased effective January 1 of each year without a vote of the membership by an amount equal to no more than ten percent (10%) over the assessment for the prior year.

(b) From and after January 1 of the year immediately following the conveyance of the first Lot to an Owner, the maximum annual assessment may be increased above that established by an amount greater than ten percent (10%) over the assessment for the prior year only by the written approval of the Owners entitled to cast eighty percent (80%) of the votes of the Association.

(c) After consideration of current maintenance costs and future needs of the Association, the Board of Directors may fix the annual assessment at an amount not in excess of the maximum.

Section 4. Special Assessments for Capital Improvement. In addition to the annual assessment authorized above, the Association may levy, in any assessment year, a special assessment applicable to that year only, for the purpose of defraying, in whole or in part, the cost of any construction, reconstruction, or unexpected repair or replacement of a described capital improvement upon ~~the Common Area~~, any exterior component of the Townhouses including the painting thereof or roof repair or replacement provided that any such assessment shall have the written approval of the Owners entitled to cast eighty percent (80%) of the votes of the Association.

Section 5. Notice and Quorum for any Action Authorized Under Sections 3 and 4.
Written notice of any meeting called for the purpose of taking any action authorized under

Section 3 or 4 shall be sent to all members not less than ten (10) days nor more than fifty (50) days in advance of the meeting. At the first such meeting called, the presence of members or of proxies entitled to cast sixty percent (60%) of all the votes entitled to be cast by the Members of the Association shall constitute a quorum. If the required quorum is not present, another meeting may be called subject to the same notice and quorum requirements. In lieu of a meeting, a door to door canvass may be used to obtain votes of the Members.

Section 6. Rates of Assessment. Both annual and special assessments on all Lots, whether owned by the Declarant or an Owner, must be fixed at uniform rates as follows:

(a) Conveyed Lots, those Lots which have been conveyed by Declarant to third party Owners shall be assessed the full assessment as set by the Association;

(b) Declarant Lots, those Lots owned by the Declarant, shall be assessed twenty percent (20%) of the full assessment as set by the Association as herein provided.

(c) Notwithstanding the provisions of this Section 6, the Declarant shall make up the difference, if any, between the cost of operating the Association and the total assessments collected as herein provided until such time as all of the Lots are sold. At such time, Declarant's obligations under this provision shall be extinguished.

Section 7. Date of Commencement of Annual Assessments: Due Dates. The annual assessments provided for herein shall commence as to all Lots no later than the first day of the month following the conveyance of the first Lot by Declarant. The first annual assessment with respect to each Lot shall be adjusted according to the number of months remaining in the calendar year. The Board of Directors shall fix the amount of the

annual assessment against each Lot at least thirty (30) days in advance of each annual assessment period. Written notice of the annual assessment shall be sent to every Owner subject thereto. Assessments shall be due and payable monthly or as otherwise directed by the Board of Directors. The Association shall, upon demand, and for a reasonable charge, furnish a certificate signed by an officer of the Association setting forth whether the assessments on a specified Lot have been paid. A properly executed certificate of the Association as to the status of assessments on a Lot is binding upon the Association as of the date of its issuance.

Section 8. Effect of Nonpayment of Assessments: Remedies of the Association.

Any assessments which are not paid when due shall be delinquent. If the assessment is not paid within thirty (30) days after the due date, the assessment shall bear interest from the due date until paid at the rate of eighteen percent (18%) per annum, and the Association may bring action at law against the Owner personally obligated to pay the same, or foreclose the lien against the property. Interest, costs, and reasonable attorney's fees of any such action shall be added to the amount of such assessment. Each such Owner, by his acceptance of a deed to a Lot, hereby expressly vests in the Association or its agents, the right and power to bring all actions against such Owner personally for the collection of such charges as a debt and to enforce the aforesaid lien by all methods available for the enforcement of such liens, including foreclosure by an action brought in the name of the Association in a like manner as a mortgage or deed of trust lien foreclosure on real property, and such Owner expressly grants to the Association a power of sale in connection with said lien. No Owner may waive or otherwise escape liability for

the assessments provided for herein by non-use of the common Area or abandonment of his Lot.

Section 9. Subordination of Lien to Mortgages. The lien securing the assessment provided for herein shall be subordinate to the lien of any mortgage. Sale or transfer of any Lot shall not affect the assessment lien. However, the sale or transfer of any Lot which is subject to any mortgage, pursuant to a decree of foreclosure thereof, shall extinguish the lien of such assessments as to payments thereof which became due prior to such sale or transfer. No sale or transfer shall relieve such Lot from liability for any assessment thereafter becoming due according to the terms herein provided.

Section 10. Management Agreements. Each Owner of a Lot hereby agrees to be bound by the terms and conditions of all management agreements entered into by the Association. A copy of all such agreements shall be available to each owner. Any and all management agreements entered into by the Association shall provide that said management agreement may be cancelled with thirty (30) days written notice when authorized by majority vote of Members of the Association. In no event shall such management agreement be cancelled prior to the negotiation by the Association or its Board of Directors of a new management agreement with a party or parties, which new management agreement will become operative immediately upon the cancellation of the preceding management agreement. It shall be the duty of the Association or its Board of Directors to effect a new management agreement prior to the expiration of any prior management contract. Any and all management agreements shall be for a term not to exceed one year and shall be made with a professional and responsible party or parties

with proven management skills and experience managing a project of this type. The Members of the Association may terminate the professional management of the Property and assume self-management by the Association upon written agreement executed by Members entitled to cast a majority of the votes of the Association. In such event, notice of such action shall be given all Lienholders prior to the effective date of termination.

Section 11. Insurance Requirements.

(a) Each Owner shall be required to furnish annually to the Association, and to the complete satisfaction of the Board of Directors, proof of insurance coverage on his Townhouse, by a reputable insurance company acceptable to the Association and licensed to do business in the State of Texas, in an amount equal to the replacement cost of the Townhouse, affording protection against loss or damage from fire or other hazards covered by the standard extended coverage endorsement. In the event of damage or destruction of a Townhouse the Owner thereof shall repair or rebuild such Townhouse in as good a condition as formerly existed. In the event said Owner fails or refused to do so, the Association is hereby authorized to undertake to rebuild or repair the Townhouse and assess said Owner for the cost of such repair or replacement. Such assessment shall become the personal obligation of said Owner and shall be enforceable as if it were a maintenance assessment as herein provided. Should an Owner fail to provide adequate proof of insurance coverage as herein provided, the Association shall have the authority to purchase such coverage. Premiums for any insurance obtained by the Association on individual Townhouses shall not be part of the common expense but shall be a debt owed

534-06-1073

by the Owner of said Townhouse and shall become part of the assessments payable by said Owner and collectible as such as herein provided.

(b) The Association, through the Board of Directors, or its duly Authorized agent, shall have the authority to obtain the following types of insurance policies:

- (1) property insurance in an amount equal to the full replacement value of the common facilities owned by the Association (including all building service equipment and the like) with an "Agreed Amount Endorsement" or its equivalent, a "Demolition Endorsement" or its equivalent, and, if necessary, an "Increased Costs of Construction Endorsement" or "Contingent Liability from Operation of Building Laws Endorsement" or the equivalent, affording protection against loss or damage by fire and other hazards covered by the standard extended coverage endorsement, and by sprinkler leakage, debris removal, cost of demolition, vandalism, malicious mischief, windstorm, and water damage and any such other risks as shall customarily be covered with respect to projects similar in construction, location and use;
- (2) a comprehensive policy of public liability insurance covering all of the common areas located in the project insuring the Association, with such limits as it may consider acceptable (and not less than \$1,000,000 covering all claims for personal injury and/or property damage arising out of a single occurrence), such coverage to include protection against water damage liability, liability for non-owned and hired automobiles, liability for property of others, and, and other coverage the Association deems prudent and which is customarily carried with respect to projects similar in construction, location and use;
- (3) a policy of fidelity coverage to protect against dishonest acts on the part of officers, directors, trustees and employees of the Association and all others who handle, or are responsible for handling funds of the Association. Such fidelity bounds shall be of a kind and in an amount the Association deems necessary for the protection of the Owners; and
- (4) Upon the approval of Owners of at least eighty percent (80%) of the Lots, a blanket hazard insurance policy with extended coverage, covering each of the Townhouses (but not the contents thereof).

Premiums for all such insurance shall be a common expense payable from assessments.

Liability and personal property insurance for Lots and the contents of Townhouses

including garages shall be the responsibility of and at the expense of each individual Owner. In the event of damage or destruction by fire or other casualty to any property in the Common Area covered by insurance written in the name of the Association, the Board of Directors shall, upon receipt of the insurance proceeds, contract to rebuild or repair such damage or destroyed portions of the property to as a good condition as formerly. All such insurance proceeds shall be deposited in a bank or other financial institution, the accounts of which bank or institution are insured by Federal governmental agency, with the proviso agreed to by said bank or institution that such funds may be withdrawn only by signature of a least two-thirds (2/3) of the members of the Board of Directors, or by an agent duly authorized by the Board of Directors. The Board of Directors shall advertise for sealed bids with any licensed contractors, and then may negotiate with any contractor, who shall be required to provide a full performance and payment bond for the repair, reconstruction or rebuilding of such destroyed building or buildings. In the event the insurance proceeds are insufficient to pay all costs of repairing and/or rebuilding to the same condition as formerly, the Board of Directors shall levy a special assessment against all Owners, as herein provided, to make up any deficiency.

ARTICLE V.

ARCHITECTURAL CONTROL

No building, fence, wall or other structure shall be commenced, erected or maintained upon any Lot ^{in the Common AREA} after the purchase of any Lot from Declarant, its successors or assigns, nor shall any exterior addition to or change or alteration thereof (including painting) be made until the plans and specifications showing the nature, color, kind, shape,

height, materials and location of the same shall have been submitted to and approved in writing as to harmony of external design and location in relation to surrounding structures and topography by the Board of Directors of the Association, or by an Architectural Committee composed of two (2) or more representatives appointed by the Board. In the event said Board, or its designated committee, fails to approve or disapprove such design and location within thirty (30) days after said plans and specifications have been submitted to it, approval will not be required and this Article will be deemed to have been fully complied with. Approval, once given, shall be irrevocable.

ARTICLE VI.

EXTERIOR MAINTENANCE

~~In addition to maintenance upon the Common Area,~~ the Association shall on an exclusive basis provide exterior maintenance upon each Lot which is subject to assessment hereunder, as follows: paint, repair, replacement and care of roofs, gutters, downspouts, exterior building surfaces, garage doors, trees, shrubs, grass, walks, and other exterior improvements and landscaping. Such exterior maintenance shall not include glass surfaces, enclosed garden areas, window and door fixtures and hardware, weather stripping, air conditioning equipment and landscaping located inside the enclosed gardens appurtenant to each Unit.

In the event that the need for maintenance or repair of a Lot or the improvements thereon is caused through the willful or negligent acts of its owner, or through the willful or negligent acts of the family, guests, tenants or invitees of the owner of the Lot needing

such maintenance or repair, the cost of such exterior maintenance shall be added to and become part of the assessment to which such Lot is subject.

ARTICLE VII.

PARTY WALLS

Section 1. General Rules of Law to Apply. Each wall which is built as a part of the original construction of the Townhouses including garages upon the Property placed on the dividing line between two Lots shall constitute a party wall, and, to the extent not inconsistent with the provisions of this Article, the general rules of law regarding party walls and liability for property damage due to negligence or willful acts or omissions shall apply thereto.

Section 2. Sharing of Repair and Maintenance. The cost of reasonable repair and maintenance of a party wall shall be shared by the Owners who make use of the wall in proportion to such use.

Section 3. Destruction by Fire or Other Casualty. If a party wall is destroyed or damaged by fire or other casualty, any Owner who has used the wall may restore it, and if other Owners thereafter make use of the wall, they shall contribute to the costs of restoration thereof in proportion to such use without prejudice, however, to the right of any such Owners to call for a larger contribution from the others under any rule of law regarding liability for negligent or willful acts or omissions.

Section 4. Weatherproofing. Notwithstanding any other provision of this Article, an Owner who by his negligent or will full act causes the party will to be exposed to the

elements shall bear the whole costs of furnishing the necessary protection against such elements.

Section 5. Right to Contribution Runs with Land. The right of any Owner to contribution from any other Owner under this Article shall be appurtenant to the Land and shall pass to such Owner's successors in title.

Section 6. Arbitration. In the event of any dispute arising concerning a party wall, or under the provisions of this Article, such dispute shall be resolved by arbitration under the rules of the American Arbitration Association and the decision thereof shall be binding on all parties. In this regard, each party shall choose one arbitrator, and such arbitrators shall choose one additional arbitrator, and the decisions shall be by a majority of all the arbitrators. Should any party refuse to appoint an arbitrator within ten (10) days after written request therefore, the Board of Directors of the Association shall select an arbitrator for the refusing party.

ARTICLE VIII.

USE RESTRICTIONS

Section 1. The Property is hereby restricted to residential dwellings for residential use only. The Common Area shall not be used for any commercial purposes. All buildings or structures erected upon said Property, shall be of new construction and no buildings or structures shall be moved from other locations onto said Property and no subsequent buildings or structures other than townhouses shall be constructed. No structures of a temporary character, including trailers, motor vehicles, tents, shacks, garages, barns or

other outbuildings, shall be used on any portion of said Property at any time as a residence either temporarily or permanently.

Section 2. Each Lot shall be conveyed as a separately designated and legally described freehold estate subject to the terms, conditions and provisions hereof.

Section 3. Notwithstanding any provisions herein contained to the contrary, it shall be expressly permissible for Declarant or the builder of said Townhouses to maintain, during the period of construction and sale of said Townhouses, upon such portion of the premises as Declarant deems necessary, such facilities as in the sole opinion of the Declarant may be reasonably required, convenient or incidental to the construction and sale of said Townhouses, including, but without limitation, a business office, storage area, construction yards, model units and sales office.

Section 4. No animals, livestock or poultry of any kind shall be raised, bred, or kept on any of said Lots, except that reasonable numbers, consistent with a residence, of dogs, cats or other household pets may be kept provided that they are not kept, bred or maintained for any commercial purposes. The Board of Directors of the Association may from time to time, establish limits on the number of household pets that may be maintained in any Unit.

Section 5. No advertising signs, "for rent" or "for sale" signs, billboards, unsightly objects, or nuisances shall be erected, placed or permitted to remain on said Property, nor shall said Property be used in any way or for any purpose which may endanger the health or unreasonably disturb the Owner of any Townhouse or any resident thereof. Declarant, however, shall have the sole right to erect identifying signs of any size upon the Property.

The Board of Directors reserves the right to approve the design and wording of all signs, and reserves the right to enter in and upon any Lot for the purpose of removing any sign being maintained thereon which has not been approved and shall not be liable to any person or persons for any damages of whatever nature is doing so in a reasonable manner. No business activities of any kind whatever, whether part time or full time (except part time home offices), shall be conducted in any Townhouse or in any portion of said Property; provided, however, the foregoing covenants shall not apply to the business activities, signs and billboards, or the construction and maintenance of buildings, if any, of Declarant, its agents and assigns during the construction and sale period, or of the Association as incorporated or to be incorporated under the laws of the State of Texas, its successors and assigns, in furtherance of its powers and purposes as herein set forth.

Section 6. All clotheslines, equipment, service yards, or storage piles shall be kept within the enclosed garden areas, or other screened areas so as to conceal them from view of neighboring Townhouses and streets. All rubbish, trash, and garbage shall be kept in containers within the areas provided with each Townhouse and designated by the Association for collection purposes.

Section 7. Except in the individual enclosed garden areas appurtenant to a Townhouse, no planting or gardening shall be done, and no fences, hedges or walls shall be erected or maintained upon said Property except such as are installed in accordance with the initial construction of the buildings located thereon or as approved by the Association's Board of Directors or its designated representative. Except for the right of ingress and egress, the Owners of the Lots are hereby prohibited and restricted from using

any of said Property outside the exterior building lines, enclosed garden areas and garage areas, except as herein provided or as may be allowed by the Association's Board of Directors. It is expressly acknowledged and agreed by all parties concerned that this paragraph is for the mutual benefit of all Owners of Lots in the Bolsover Court Townhouse development, and is necessary for the protection of said Owners.

Section 8. All fixtures and equipment installed within a Townhouse, commencing at a point where the utility lines, pipes, wires, conduits or systems enter the exterior walls of a Townhouse, (including its appurtenant garage) shall be maintained and kept in repair by the Owner thereof. In addition, all exterior as well as interior air-conditioning systems will be maintained and kept by the Owner thereof. An Owner shall do no act nor any work that will impair the structural soundness or integrity of another Townhouse or impair any easement or hereditament, nor do any act nor allow any condition to exist which will adversely affect the other Townhouses or their Owners.

Section 9. Without prior written approval and the authorization of the Board of Directors, no exterior television or radio antennas of any sort shall be placed, allowed or maintained upon any portion of the improvements to be located upon the Property, nor upon any structure situated upon the Property other than an aerial or dish for a master antenna system, should any such master system or systems be utilized and require any such exterior antenna. The foregoing notwithstanding, an owner may install a satellite dish not to exceed 24 inches in diameter on the outside of his Townhouse, at a location to be approved by the Board of Directors that is not visible from any public street.

Section 10. No outdoor driveway or parking space on the Property shall, without express permission of the Association, be used for storage of boats, trailers, campers, unused or inoperable automobiles or any other items which the Association deems unsightly or inappropriate.

Section 11. No action shall at any time be taken by the Association or its Board of Directors which in any manner would discriminate against any Owner or Owners in favor of the other Owners.

ARTICLE IX.

EASEMENTS

Section 1. Each Townhouse and the Property included in the Common Area shall be subject to an easement for minor encroachments created by construction, settling, overhangs, brick ledges, balconies, fences or other protrusions designed or constructed by Declarant and for the maintenance (if any) of same, so long as it stands, and shall and does exist. In the event the multifamily structure containing two or more Townhouses is partially or totally destroyed, and then rebuilt, the owners of the Townhouses so affected agree that minor encroachments onto parts of the adjacent Townhouse units or Common Areas due to construction or repair shall be permitted and that a valid easement for such encroachment and the maintenance thereof shall exist.

Section 2. There is hereby created a blanket easement upon, across, over and under said Property for ingress, egress, installation, replacing, repairing and maintaining all utilities, including but not limited to water, sewers, gas, telephones and electricity, and a master television antenna system. By virtue of this easement, it shall be expressly

permissible for the providing electrical and/or telephone company to erect and maintain the necessary poles and other necessary equipment on said property and to affix and maintain electrical and/or telephone wires, circuits and conduits on, above, across and under the roofs and exterior walls of said Townhouses. An easement is, in addition, specifically granted to the United States Post Office, its agents and employees to enter upon the streets, Common Areas and Lots in the performance of mail delivery or any other United States Post Office services. An easement is further granted to all police, fire protection, ambulance and all similar persons to enter upon the streets and Common Areas in the performance of their duties. Further, an easement is hereby granted to the Association its officers, agents, employees, and to any management company duly selected by the Association, to enter in or to cross over the Common Area and/or any Townhouse to perform the duties of maintenance and repair of the Townhouse or Common Area provided for herein. Notwithstanding anything to the contrary contained in this paragraph, no sewers, electrical lines, water lines, or other utilities may be installed or relocated on said Property except as initially programmed and approved by the Declarant or thereafter approved by Declarant or the Association's Board of Directors. Should any utility furnishing a service covered by the general easement herein provided request a specific easement by separate recordable document, Declarant shall have the right to grant such easement on said Property without conflicting with the terms hereof. The easements provided for in this Article IX shall in no way affect any other recorded easement of said premises.

Section 3. Underground single phase electric service shall be available to all residential Townhouses of the aforesaid Lots and to the facilities to be constructed on the Common Area, and the metering equipment shall be located on the exterior surfaces of walls at points to be designated by the utility company. The utility company furnishing the service shall have a two (2) foot wide easement along and centered on the underground electric power service conductors installed from the utility company's easement to the designated point of service on the Townhouse structure for service and maintenance of its conductors and metering equipment. For so long as such underground service is maintained, the electric service to each Townhouse and the Common Area facility shall be uniform and exclusively of the type known as single phase, 120/240 volt, 3 wire, 60 cycle alternating current. Easements for the underground service may be crossed by driveways, walkways, and patio areas, provided the Declarant or Builder makes prior arrangements with the utility company furnishing such service. Such easements for the underground service shall be kept clear of all buildings and neither Declarant nor utility company using the easement shall be liable for any damage done by either of them or their assigns, their agents, employees or servants to shrubbery trees; flowers, or other improvements of the Owner located on the land covered by said easements.

Section 4. There is hereby created a non-exclusive easement five feet (5') in width along the southern most portion of each Lot for purposes of drainage facilities installation and maintenance.

ARTICLE X.

GENERAL PROVISIONS

Section 1. Enforcement. The Association or any Owner shall have the right to enforce, by any proceeding at law or in equity, all restrictions, conditions, covenants, reservations, liens and charges now or hereafter imposed by the provisions of this Declaration. Failure by the Association or by any Owner to enforce any covenant or restriction herein contained shall in no event be deemed a waiver of the right to do so thereafter.

Section 2. Severability. Invalidity of any one of these covenants or restrictions by judgement or court order shall in no way affect any other provisions which shall remain in full force and effect.

Section 3. Amendment. The covenants and restrictions of this Declaration shall run with and bind the land, and shall inure to the benefit of and be enforceable by the Association, or the Owner of any Lot subject to this Declaration, their respective legal representatives, heirs, successors, and assigns, for a term of twenty (20) years from the date this Declaration is recorded, after which time said covenants shall be automatically extended for successive periods of ten (10) years. This Declaration may be amended at any time by an instrument signed by Owners of not less than eighty percent (80%) of the Lots. Any Amendment must be properly recorded in the Real Property Records of Harris County, Texas. However, notwithstanding the above, any amendment to (i) allow the Members to alienate the Common Area without the consent of all lienholders or (ii) to change the ratio of assessments against Owners as herein provided must have the

approval of all Lienholders. Additionally, Declarant may amend this Declaration at any time in order to correct mistakes, inconsistencies or discrepancies contained herein.

Section 4. Gender and Grammar The singular wherever used herein shall be construed to mean the plural when applicable, and the necessary grammatical changes required to make the provisions hereof apply either to corporation or individuals, men or women, shall in all cases be assumed as a though in each case fully expressed.

IN WITNESS WHEREOF, the undersigned, being the Declarant herein, has hereto set its hand and seal this 10th day of AUGUST, 2000.

BOLSOVER COURT PARTNERSHIP,
a Texas general partnership

By: PHENIX INVESTMENT COMPANY,
a Texas corporation,
its General Partner

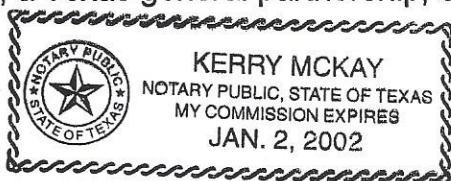
By: Timothy H. Jr.
Timothy Horan, Jr.
President

By: ABERCROMBIE BUILDERS, INC.,
a Texas corporation,
its General Partner

By: B.A. Abercrombie, Jr.
B.A. Abercrombie, Jr.
President

THE STATE OF TEXAS §
 COUNTY OF HARRIS §

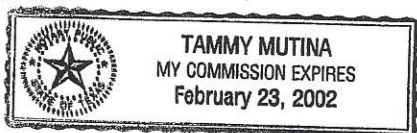
This instrument was acknowledged before me on this the 10th day of August, 2000, by Timothy Horan, Jr., President of Phenix Investment Company, a Texas corporation, as General Partner of BOLSOVER COURT PARTNERSHIP, a Texas general partnership, on behalf of such partnership.



Kerry McKay
 Notary Public, State of TEXAS

THE STATE OF TEXAS §
 COUNTY OF HARRIS §

This instrument was acknowledged before me on this the 1st day of August, 2000, by B.A. Abercrombie, Jr., President of Abercrombie Builders, Inc., a Texas corporation, as General Partner of BOLSOVER COURT PARTNERSHIP, a Texas general partnership, on behalf of such partnership.



Tammy Mutina
 Notary Public, State of TEXAS

JOINDER OF MORTGAGEE

The undersigned, BANK OF TANGLEWOOD, being the owner and holder of an existing mortgage and lien upon and against the real property described in the foregoing restrictions and defined as the "Property" in said restrictions, as such mortgagee and lienholder, does hereby consent to and join in said Declaration of Covenants, Conditions and Restrictions.

This consent and joinder shall not be construed or operate as a release of said mortgage or liens owned and held by the undersigned, or any part thereof, but the undersigned agrees that its said mortgage and liens shall hereafter be upon and against each and all of the Lots and all appurtenance thereto, and all of the undivided, equitable shares and interests in the Common Area, subject to the restriction hereby agreed to.

SIGNED AND ATTESTED by the undersigned officers of said BANK OF TANGLEWOOD, hereto authorized, this the 11th day of August, 2000.

BANK OF TANGLEWOOD

By: J. Cliff Greer

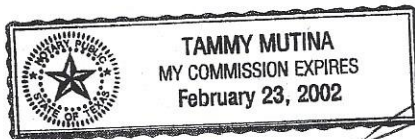
Name: J. Cliff Greer

Title: Executive Vice President

534-06-1088

THE STATE OF TEXAS §
COUNTY OF HARRIS §

This instrument was acknowledged before me on this the 17th day of August, 2000, by S. Cliff Gorman, Ex. V.P. of BANK OF TANGLEWOOD, a national banking association, on behalf of such association.



Tammy Mutina
Notary Public, State of TEXAS

Return to.

Nathan Sommers Lippman Jacobs & Gorman
2800 Post Oak Blvd., 61st Floor
Houston, Texas 77056
Attn: Timothy Horan, Jr.

534-36-1089

FILED

2-AUG-14 11:3:54

Bevly B. Hoffman
COUNTY CLERK
HARRIS COUNTY TEXAS

ANY PROVISION HEREIN WHICH RESTRICTS THE SALE, RENTAL, OR USE OF THE DESCRIBED REAL
PROPERTY BECAUSE OF COLOR OR RACE IS INVALID AND UNENFORCEABLE UNDER FEDERAL LAW
THE STATE OF TEXAS }

COUNTY OF HARRIS

I hereby certify that this instrument was FILED in File Number
Sequence on the date and at the time stamped hereon by me; and was
duly RECORDED, in the Official Public Records of Real Property of
Harris County, Texas.

AUG 14 2000



Bevly B. Hoffman

COUNTY CLERK
HARRIS COUNTY TEXAS